

Emergency contractor damage control — Action Checklist

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EVIDENCE DOCUMENTATION

- ☐ **Evidence Documentation:** Create a three-column scope audit worksheet listing every contracted item, its completion status, and supporting evidence like dated photos or communications.
- ☐ **Evidence Documentation:** Photograph and video every defect on the property, capturing timestamps and visual context that document substandard work and unfinished areas.
- ☐ **Evidence Documentation:** Organize all change orders in a separate section noting whether they were signed by both parties, their agreed costs, and their current completion status.
- ☐ **Evidence Documentation:** Record the first date you noticed each problem, establishing a timeline that shows the contractor's awareness of defects before they were addressed.

FINANCIAL CONTROLS

- ☐ **Financial Controls:** Stop all further payments to the contractor immediately and place any pending checks on hold until you complete your full scope audit.
- ☐ **Financial Controls:** File a stop-payment notice with your county recorder within 10 days of each payment to alert subcontractors and protect your lien rights.
- ☐ **Financial Controls:** Issue a written scope freeze that defines exactly which original contracted items must be completed before any new work begins.
- ☐ **Financial Controls:** Calculate your total financial exposure by compiling every payment made, all outstanding invoices, and projected costs to finish remaining work.

LEGAL LEVERAGE

- ☐ **Legal Leverage:** Send a certified letter documenting the contractor's failures, your documented discrepancies, and a specific deadline for resolution to create a formal record.

- ☐ **Legal Leverage:** Research your state's preliminary lien notice requirements and file one immediately to establish priority over other claimants against your property.

- ☐ **Legal Leverage:** Document every delay caused by this contractor that negatively affected other trades, recording specific dates and back charge amounts where applicable.

- ☐ **Legal Leverage:** Consult a construction attorney within one week to understand which legal mechanisms like stop-payment notices and back charges apply to your situation.

Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.